

# UNITED STATES INTERNATIONAL TRADE COMMISSION

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**In the Matter of:**  
**CERTAIN WEARABLE DEVICES**

) **Investigation No.:**  
) **337-TA-1478**

**Pages:** 1 - 37  
**Place:** Washington, D.C.  
**Date:** July 2, 2026



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1 UNITED STATES INTERNATIONAL TRADE COMMISSION

2 Washington, D.C.

3 BEFORE THE HONORABLE DORIS JOHNSON HINES

4 Administrative Law Judge

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7 IN THE MATTER OF: : Investigation No.

8 CERTAIN WEARABLE DEVICES : 337-TA-1478

9 - - - - - x

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11 REMOTE HEARING

12

13 International Trade Commission

14 500 E Street, S.W.

15 Washington, D.C.

16

17 Thursday, July 2, 2026

18

19 CASE MANAGEMENT CONFERENCE

20

21 The hearing commenced, pursuant to the notice of the  
22 Judge, at 11:02 a.m. Eastern.

23

24 Reported by: Carmen Smith

25

1 APPEARANCES:

2

3 On Behalf of Complainants:

4 D. SEAN TRAINOR, ESQ.

5 O'Melveny & Myers

6 1625 Eye Street, NW

7 Washington, DC 20006

8 202.383.5300

9

10 On Behalf of Complainants:

11 MARC J. PENSABENE, ESQ.

12 O'Melveny & Myers

13 1301 Avenue of the Americas, Suite 1700

14 New York, New York 10019

15 212.326.2000

16

17 On Behalf of Respondents:

18 JASJIT VIDWAN, ESQ.

19 Mayer Brown LLP

20 1999 K Street, NW

21 Washington, DC 20006

22 202.263.3000

23

24

25

1 P R O C E E D I N G S

2 (11:02 a.m.)

3 JUDGE JOHNSON HINES: We're here for a case  
4 management conference in Investigation Number 337-TA-1478.

5 May I have appearances from Samsung, please.

6 MR. TRAINOR: Good morning, your Honor. Sean  
7 Trainor from O'Melveny on behalf of Samsung. And with me  
8 is my colleague Marc Pensabene, who will be handling most  
9 of today's conference.

10 JUDGE JOHNSON HINES: Good morning. And  
11 welcome.

12 And for Oura, please?

13 MR. VIDWAN: Good morning, your Honor. Jasjit  
14 Vidwan with Mayer Brown on behalf of Oura.

15 JUDGE JOHNSON HINES: Good morning.

16 Welcome to you as well. All right. We have two  
17 discovery letters, one from Samsung, one from Oura. I am  
18 going to start with the letter from Samsung. This report  
19 relates to rebuttal report on infringement and a comparison  
20 of an accused product to the prior art product.

21 Is that generally correct, Mr. Pensabene?

22 MR. PENSABENE: That's a fair summary of it at a  
23 very high level, yes.

24 JUDGE JOHNSON HINES: All right.

25 So, Mr. Vidwan, I have a question for you. You

1 agree that practice in the prior art is not a defense to  
2 infringement; correct?

3 MR. VIDWAN: We do, your Honor.

4 JUDGE JOHNSON HINES: All right. Looking  
5 through your responsive letter, you noted a Federal Circuit  
6 case from 2018, the 01 Communique case. I'm not sure  
7 that's as helpful for you as you might think.

8 It seemed that in that case, what the Federal  
9 Circuit was saying is in the context of claim construction,  
10 claims must be construed the same way for infringement as  
11 for invalidity, and there was nothing improper about that  
12 argument.

13 So I guess a question, and I'll start with you,  
14 Mr. Vidwan, and then, Mr. Pensabene, if you have thoughts,  
15 I'd like to hear them as well.

16 Is this a claim construction issue? I wasn't  
17 seeing that, but I could be wrong. So I'd like to just get  
18 an understanding of is there an argument that, Mr. Vidwan,  
19 Oura is making that Samsung is making inconsistent claim  
20 construction arguments for infringement and invalidity?

21 MR. VIDWAN: Thank you, your Honor. I want to  
22 address that. I think those line of cases, what they were  
23 trying to say was that you can't -- defendant can't just  
24 hand wave invalidity and use a lower standard of proof.  
25 That is not what we're trying to do.

1           Our position is if Samsung is going to take a  
2   position that these claims are as broad they wanted it to  
3   be, the same prior art captures the same thing.

4           We are not trying to lower the threshold on what  
5   we have to prove for invalidity. We are still going to  
6   prove it through clear and convincing evidence and Gen 1 is  
7   used most often.

8           So I want to have that distinction there because  
9   it gets into this idea of how Samsung is construing the  
10  scope of the claims. Rather than getting into like what is  
11  the scope of the claims, is it broader or is it narrower,  
12  what we're trying to say is if we take Samsung's word that  
13  this is a -- claims aren't as broad as they want it to be,  
14  then Gen 1 was capturing that.

15          We were not trying to say that we can practice  
16  the prior art and therefore kind of sneak in invalidity  
17  through a lower standard of proof.

18          It's not a direct claim construction, it's more  
19  of how is Samsung construing the scope of the claim. We  
20  are not trying to lower our burden of proof. We are still  
21  going to prove it by clear and convincing.

22          JUDGE JOHNSON HINES: All right. So what 01  
23  Communique says, what Tate Flooring says consistently, is  
24  to look at the accused products compared to the claims and  
25  prior art, and what I thought was important from 01

1     Communique is saying in assessing infringement, the jury  
2     was instructed not to compare the accused product to the  
3     prior art.

4             And here there seems to be a comparison of the  
5     accused product to the prior art.

6             We're not in a jury situation obviously, and  
7     so -- as Mr. Vidwan has said, you know, in assessing  
8     infringement, compare the accused product to the claims.  
9     In assessing invalidity, compare the prior art to the  
10    claims.

11            So a comparison of the accused product to the  
12    prior art product, I'm not prepared to say that it is  
13    necessarily improper, but it does seem to be shifting a  
14    focus to practicing the prior art.

15            But as Mr. Vidwan has just said, that would be  
16    improper.

17            It seems to me the issue is the extent to which  
18    the arguments in a rebuttal report on infringement include  
19    new opinions on prior art invalidity.

20            Samsung suggests in its letter that there are  
21    new opinions. There's long string cites of paragraphs  
22    where new opinions may appear.

23            At this point, I was not able to make that  
24    assessment and compare and make a determination that I  
25    would be comfortable with, frankly, saying that there are

1 new opinions in a rebuttal noninfringement report on  
2 invalidity.

3           It seems undisputed that the Oura 1 product is  
4 and has been identified as prior art. Mr. Pensabene, do  
5 you agree with that?

6           MR. PENSABENE: Yes, your Honor. We agree that  
7 the Oura 1 product is prior art, but the important thing  
8 here is that nowhere in their invalidity contention did  
9 they ever make any comparison to the Oura Ring 4.

10           The Oura Ring 4 is not even mentioned in their  
11 invalidity contentions, so what they're doing now under the  
12 guise of a noninfringement report is they're offering  
13 wholly new invalidity opinions. And if they wanted to make  
14 a comparison between the Oura Ring 1 and Oura Ring 4 as a  
15 basis for invalidity, which is what Mr. Vidwan just  
16 admitted, that should have been in their opening report so  
17 that we could have had a chance to respond to it, and quite  
18 frankly, it should have been made in the contentions in the  
19 first instance so that we could have investigated and  
20 pursued these alleged similarities between the Oura Ring 1  
21 and Oura Ring 4.

22           So it's a long way of saying that while we don't  
23 dispute that the Oura Ring 1 was properly identified in  
24 their invalidity contentions and addressed in their  
25 invalidity expert reports, this whole comparison to the

1     Oura Ring 4 and this argument that if the Oura Ring 4  
2     infringes, well, then the Oura Ring 1 anticipates, that was  
3     never disclosed in their contentions.

4             JUDGE JOHNSON HINES: Right, I understand that.

5             And it gets -- kind of gets to the first point  
6     of practicing the prior art defense to infringement is  
7     legally inappropriate. And I agree with that.

8             But it seems to me there's a subsidiary issue,  
9     which is with respect to prior art invalidity with respect  
10    to the Oura 1 ring, are there new opinions with respect to  
11    the Oura 1 ring and how it meets the claim or the claims?

12            MR. PENSABENE: There are, your Honor.

13            JUDGE JOHNSON HINES: Go ahead.

14            MR. PENSABENE: I'm sorry, there's a lag in the  
15    video. I didn't mean to interrupt you.

16            JUDGE JOHNSON HINES: I understand.

17            MR. PENSABENE: There are new opinions, and I  
18    think in our letter, we identify specifically the paragraph  
19    that contained, you know, cites to new evidence, new  
20    arguments, et cetera.

21            We cite two different paragraphs. Some that  
22    have new arguments and some that have don't necessarily  
23    have new evidence but we do cite those.

24            We gave two examples in our letter to the Court  
25    that I think was just yesterday, Oura realized the problem

1     that they were facing with these new and changed opinions.  
2     So under the guise of, you know, correcting errors in their  
3     expert reports, they have changed now what the expert  
4     report said in regard to what we've cited.

5                 Nonetheless, there are still inconsistencies,  
6     for example, in what Oura identified as the first period of  
7     time and second period of time with regard to one of the  
8     patents, and that's just one of the examples.

9                 JUDGE JOHNSON HINES: Right. And that was  
10    identified, I think there was -- there was a mistake, and  
11    then that mistake was corrected.

12                Is that right, Mr. Vidwan?

13                MR. VIDWAN: Correct, your Honor. So we  
14    submitted errata yesterday. And there are no new opinion,  
15    and I don't think Samsung has identified, and they can  
16    correct me if I'm wrong, that there's any source code that  
17    was in their rebuttal report that was not part of any of  
18    the filed pats that we pointed to.

19                Throughout this entire Gen 1, it's the same  
20    state diagram that we are following. We haven't changed  
21    which states we are pointing to, and the state diagram is  
22    obviously trying to capture the source code aspect of it.

23                Nothing has changed. The evidence is basically  
24    the same state diagram, same trial pats, and their  
25    infringement they specifically said here is the lines, we

1 identified those exact lines in Gen 1.

2 We are not again trying to capture it. When we  
3 present this, it's going to be presented as Gen 1. We're  
4 not saying -- but there is no new opinions.

5 The two examples they identified, one was  
6 because it was -- the error was in Samsung's expert report  
7 and when we cited to it, it got captured wrong. We fixed  
8 that errata.

9 The second one is maybe it was poorly worded and  
10 it just needs to add the shortly before language.

11 But I think it is also corrected in errata or it  
12 can be contested in the deposition. But these are not new  
13 opinions. We're not all of a sudden saying, well, look at  
14 a different part of the state diagram or look at completely  
15 different state diagram.

16 It's the same opinions.

17 JUDGE JOHNSON HINES: All right. As I said, and  
18 I've heard what both of you have said. I am not in a  
19 position right now to say whether or not there are new  
20 opinions on Oura 1 invalidity allegation that were  
21 presented in the rebuttal noninfringement report. I am not  
22 in a position to do that.

23 I see that there were a number of things cited.  
24 I see there was a statement that there was some  
25 typographical errors, things that would be corrected.

1           So what I will suggest to the parties is that  
2   you continue to meet and confer on that. And if those --  
3   that issue is unresolved, then it can get raised at the  
4   August 4 case management conference.

5           As I said, and it seem the parties agree, Oura 1  
6   invalidity allegations have been there. Whether they are  
7   correct, complete, anything about them, I don't know, and  
8   I'm not in a position to assess that now.

9           What the parties should focus on in addressing  
10   the issues is whether there are actual new opinions, or  
11   whether they are reasonable elaboration on those opinions.  
12   I understand those issues can be difficult and there can be  
13   a fine line between those. But the party should consider  
14   that.

15           And if it's appropriate, consider whether the  
16   parties can agree on supplementation if that would be  
17   useful or necessary.

18           But right now, what I'd like to focus on is what  
19   the issues are that are going to be presented at hearing,  
20   and that is on the one hand on infringement, whether or not  
21   the accused products meet the asserted claims, and for  
22   invalidity, whether or not the identified prior art meets  
23   the asserted claims.

24           The usefulness or not of a comparison of the  
25   accused product to the prior art, I'm not sure it's

1     terribly useful.  As I said, though, I'm not categorically  
2     precluding it, but looking at the case law and what's  
3     required to prove infringement, you compare the accused  
4     product to the claims to prove invalidity, you compare the  
5     prior art to the claims.

6                     And where those two meet in the middle, I think  
7     there can be arguments that it's legally improper to make  
8     an argument that would, in essence, boil down to a  
9     practicing the prior art argument.

10                    That is where I am now.  So I will not say that  
11    the rebuttal noninfringement report opinions comparing Oura  
12    4 to Oura 1 are struck.  I am suggesting that there are  
13    obviously situations where presenting that kind of argument  
14    would be legally improper.

15                    I don't know, however, what arguments Oura is  
16    going to present at the evidentiary hearing.  But to the  
17    extent this issue has been raised now, looking at what the  
18    cases say and how in practice to present noninfringement  
19    and invalidity arguments, those are my thoughts.

20                    So I actually don't know how helpful that's  
21    going to be to the parties, but that's at least where I --  
22    that's where I am now based on what I can glean from the  
23    information the parties have presented.

24                    MR. PENSABENE:  Understood, your Honor.  And  
25    again I just want to reiterate, our fundamental problems is

1     these are invalidity opinions, these are not  
2     noninfringement opinions, and we've heard counsel admit as  
3     much.

4                 JUDGE JOHNSON HINES:   The issue, Mr. Pensabene,  
5     the problem with that broad statement for me is comparing  
6     an accused product to a prior art product is not actually  
7     an invalidity argument.   That's not.

8                 An invalidity argument is comparing a piece of  
9     prior art to the claims.   Comparing an accused product to a  
10    prior art product is also not an infringement argument,  
11    because an infringement argument is comparing the accused  
12    product to the claims is.

13                So as a broad statement, I can't agree.   I  
14    cannot agree with what you're saying.

15                I understand and appreciate the issue that has  
16    been raised, but as I said, and given what Mr. Vidwan said,  
17    that Oura is not making a practicing prior art argument,  
18    which is why it was my first question, then it seems to be  
19    of maybe marginal utility what was provided when  
20    considering noninfringement in a rebuttal report, which is  
21    why I wanted to move to what actually may matter, which is  
22    whether or not in the rebuttal noninfringement report,  
23    there are new opinions on invalidity as to the Oura 1  
24    product.

25                That is what should be the parties' focus, and

1    whether or not those -- the portions of the report that  
2    Mr. Pensabene, you pointed out, are they truly new opinions  
3    with respect to the argument of invalidity with respect to  
4    Oura 1.

5                   MR. PENSABENE:   Understood.   Thank you, your  
6    Honor, that's helpful.

7                   JUDGE JOHNSON HINES:   Mr. Vidwan, any questions  
8    or additional comments?

9                   MR. VIDWAN:   Nothing for us, your Honor.   I  
10   guess the only thing would be logistics.

11                   If Samsung wants to file a surreply or  
12   surrebuttal, we are okay with it.   But again the timing, we  
13   don't know whether they plan to do it, but we don't want it  
14   to happen where after all the depositions are done, the  
15   expert discovery is closed, that's when they come up with a  
16   rebuttal.

17                   So I'm not sure if Samsung plans to file it.   We  
18   are okay with it from our end.   But the timing is an issue,  
19   though.

20                   JUDGE JOHNSON HINES:   When does -- I had the  
21   schedule.

22                   MR. VIDWAN:   The fact discovery and expert  
23   discovery closes July 9, which is -- and the deposition of  
24   our expert is happening on I believe the 7th and the 8th.  
25   And both of Samsung's technical experts are being offered

1 on the last day, which is July 9.

2 And then there is a summary determination July  
3 13, and as your Honor knows, we go into 1468 trial two days  
4 later. Your Honor, this might be a moot point if Samsung  
5 does not plan to file a surrebuttal report so --

6 JUDGE JOHNSON HINES: Mr. Pensabene, do you know  
7 at this point whether Samsung intends to supplement its  
8 expert report?

9 MR. PENSABENE: To be honest, your Honor, we're  
10 in a little bit of a difficult position because, you know,  
11 honestly, we don't know what your Honor is going to permit  
12 them to do.

13 If they are going to be permitted to offer  
14 testimony that is now -- on invalidity that appears for the  
15 first time in their rebuttal report, we're of course going  
16 to want to supplement to allow our expert to properly  
17 respond to those invalidity opinions.

18 JUDGE JOHNSON HINES: So the issue is, and I'll  
19 go back to something I said at the very beginning, which is  
20 based on what the parties provided, I'm not in a position  
21 to say that there are or there are not new opinions in the  
22 supplement -- in the rebuttal report on noninfringement on  
23 invalidity with respect to Oura 1. I just -- I don't know  
24 that.

25 So you're right, I'm not in a position to tell

1     you whether or not there are because I can't tell whether  
2     there are or not.

3                 So that is why I suggested, and I understand,  
4     you know, the time in the schedule is what it is and  
5     there's an upcoming hearing in a separate investigation  
6     involving the same parties.

7                 I understand all that and the timing  
8     constraints. But it gets to the --

9                 MR. PENSABENE: Your Honor, there's no dispute  
10    that the Oura Ring 4 comparison, the comparison between  
11    Oura Ring 1 and Oura Ring 4 was never offered in their  
12    contentions. The Oura Ring 4 is not even mentioned in  
13    their contentions.

14                So we don't really need to look at the expert  
15    reports to compare to see whether or not there's any  
16    invalidity opinion there.

17                This whole comparison to Oura Ring 4 is  
18    completely new and not in their contentions.

19                JUDGE JOHNSON HINES: I understand that.

20                What I was hoping to make clear, but apparently  
21    did not, with respect to infringement, I don't see the  
22    usefulness of that comparison because an infringement  
23    argument relates to the accused products.

24                For an invalidity argument, I'm not sure I see  
25    the usefulness of that comparison because an invalidity

1 analysis is with respect to the prior art.

2 That is where I am, which is why I defaulted to  
3 whether or not there -- did we lose Mr. Vidwan?

4 MR. PENSABENE: I think we may have lost  
5 Mr. Vidwan, yes.

6 MR. VIDWAN: Your Honor, I'm also on my  
7 cellphone so I'm logging back in, but for right now I am on  
8 my cellphone.

9 JUDGE JOHNSON HINES: Are you okay with us going  
10 forward?

11 MR. VIDWAN: Yes, your Honor.

12 JUDGE JOHNSON HINES: Thank you.

13 So that is why -- I understand that the  
14 comparison between Oura 1 and Oura 4 was not presented  
15 earlier. I understand that. I question the usefulness of  
16 that comparison for either of the issues that are going to  
17 be decided, which are infringement of Oura 4 or invalidity  
18 based on Oura 1.

19 That is why I asked the question on just  
20 considering Oura 1 and the opinions that have been  
21 presented on Oura 1 and whether or not it invalidates the  
22 claims, are there new opinions as to just the Oura 1 that  
23 were provided, setting aside the separate issue of the  
24 comparison between Oura 1 and Oura 4.

25 What I'm saying is I cannot tell from the

1 information that's been provided whether or not that's so.

2 MR. PENSABENE: Very good.

3 JUDGE JOHNSON HINES: So I'm not saying are you  
4 going to supplement a comparison of Oura 1 and Oura 4,  
5 because I'm not sure of the usefulness of that comparison  
6 in the first place.

7 MR. PENSABENE: Yeah, and we totally agree.

8 You know, really, it sounds like it's going to  
9 come down to whether or not Oura plans on presenting this  
10 comparison at the hearing, whether or not your Honor deems  
11 it informative or not. If they are going to present it at  
12 the hearing, I think in fairness we're going to want the  
13 opportunity to respond.

14 JUDGE JOHNSON HINES: So based on at least Tate  
15 Flooring and 01 Communique, it appears to me that the  
16 Federal Circuit has said that making an argument that  
17 claims are being construed so broadly that they would then  
18 capture the prior art means that it is not completely  
19 inappropriate to compare an accused product to a prior art  
20 product.

21 The Federal Circuit has been equally clear that  
22 in considering infringement, what you look at is the  
23 accused product. And when you consider prior art, you look  
24 at the prior art product.

25 So it appears to me at least there is some space

1 for saying in the context of the breadth of the claims or  
2 how claims are being construed, that if you construe it so  
3 broadly, you're going to walk into prior art, followed by  
4 an argument about why that's so as to the prior art.

5 So I don't believe that it's appropriate for me  
6 to say at this juncture that it would be completely  
7 inappropriate to say that there is a connection because of  
8 the way the claims are being construed, which is why I  
9 asked the question early on of is there a specific claim  
10 construction issue that is driving this.

11 It sounds like no, or at least I haven't heard  
12 that. It was more of a global argument of the claims are  
13 being construed so broadly or the claims are so broad that  
14 they capture the prior art.

15 So I'm not seeing this as related to a specific  
16 claim construction issue, which if Oura's construction  
17 wins, then -- or Samsung's construction wins, then, you  
18 know, we're looking at prior art in a different way.

19 So I'm not seeing that. I haven't heard that.

20 MR. PENSABENE: That's fair.

21 JUDGE JOHNSON HINES: That's a really  
22 long-winded way for me to say I'm not sure how helpful this  
23 is to you at this point. What I can do based on what I  
24 have is say if Samsung wants to prove infringement, it  
25 should focus on the accused products. And if Oura wants to

1 demonstrate invalidity, it should focus on the prior art.

2           Whether and how this comparison between the  
3 accused product and the prior art comes up at a hearing,  
4 like I said, I am not in a position to say right here and  
5 now that that is completely inappropriate for all purposes.

6           What I can say is in considering infringement, I  
7 want to hear about the accused product, and in considering  
8 invalidity, I want to hear about the prior art.

9           So maybe there is some marginal usefulness, I  
10 don't know, to comparing them. It seems to me in looking  
11 at the case where the Federal Circuit has said it is most  
12 useful to consider this argument, this type of argument, is  
13 when you have the same product that is accused that was on  
14 sale for five years before the patent issued and therefore  
15 the very same things were in the prior art.

16           I think that's probably where Mr. Vidwan is  
17 going with this argument, but it is a little different.  
18 It's not the same product. So that's where I am now.

19           For the issue of whether there are new opinions  
20 as to Oura 1 prior art, I do think the parties should focus  
21 on that, because that to me would be the most useful thing  
22 at this point for the parties to focus on, and whether  
23 there is anything new, and Mr. Vidwan has said there is  
24 not, and I understand, Mr. Pensabene, you may disagree with  
25 him, but is there anything new that would rise to the level

1 of a new opinion on that prior art product, which you seem  
2 to be aware of, it has been identified as prior art, is  
3 there something so new in those opinions in the rebuttal  
4 infringement report that would or could rise to the level  
5 of a motion to strike.

6 MR. PENSABENE: I appreciate that, your Honor.  
7 And I apologize, I don't mean to be difficult. I just --  
8 we're in kind of a difficult situation because we don't  
9 know what Oura is going to do at the hearing, so we're kind  
10 of in a difficult position.

11 JUDGE JOHNSON HINES: Sure. And that's not an  
12 unusual position, I don't think. But I understand what  
13 you're saying.

14 Hopefully, my stressing the importance of what  
15 to consider in infringement and what to consider in  
16 invalidity, the parties can move forward on that base in  
17 considering what is truly important for me to find facts on  
18 and to consider, as opposed to things that are not.

19 All right. Until anyone else has anything to  
20 say on Samsung's letter, I'd like to move on to Oura's  
21 letter.

22 So as I understand it, Oura's letter relates to  
23 infringement contentions on the '789 patent, and there  
24 were -- provided in contentions doesn't to be disputed at  
25 all, that there was a first mapping and a second mapping.

1 And the issue is with respect to a third alternative  
2 mapping that was provided in the infringement expert  
3 report.

4 Is that generally correct, Mr. Vidwan?

5 MR. VIDWAN: That is correct, your Honor.

6 JUDGE JOHNSON HINES: All right. So a question  
7 for you, Mr. Vidwan. In terms of the claim, and we're  
8 talking about claim 7 of the '789 patent, does where the  
9 layers are matter in terms of functionality or other claim  
10 requirements?

11 MR. VIDWAN: So, your Honor, I think -- the way  
12 the claims are written and the way again I think this is  
13 going back to the way Samsung is construing, they're saying  
14 as long as there's anywhere on there, top down, bottom up,  
15 and it doesn't even have to be connected as your Honor has  
16 seen. They were just picking here's the insulation layer,  
17 there's the conductive layer.

18 If it was narrowly -- the claim and entire scope  
19 again, not a claim construction issue, but if it was  
20 actually construed as we think it should be, which is  
21 specific sequence, then it would matter.

22 But I think the claim we recognize is a little  
23 bit vague that allows them to be able to pick and choose  
24 different where the layers are.

25 JUDGE JOHNSON HINES: Can you explain what you

1 mean by "specific sequence"?

2 MR. VIDWAN: I think it basically was saying  
3 there has to be exterior layer and then the way I would  
4 have typically read it, and again Samsung is not going to  
5 agree with the way I read it, would be then the next has to  
6 be the insulation layer for example and where the  
7 conductive layer are sequenced.

8 As you see, your Honor, in some places there are  
9 gaps where insulation layers and conductive layers are.

10 So it's a long way of saying if -- my preference  
11 would have been that, yes, it matters, but I don't think it  
12 does at the end of the day, if you read it broadly.

13 JUDGE JOHNSON HINES: So is it then -- is part  
14 of Oura's position that there's a specific sequence of  
15 layers where they're not intervening layers between claimed  
16 layers?

17 MR. VIDWAN: Your Honor, I think like this one  
18 is a little bit more straightforward, our argument, and  
19 it's a little bit different from the -- from Samsung's  
20 letter.

21 Here they disclose, there's two different  
22 alternatives, and we were on notice of those. We recognize  
23 that.

24 What they're doing, this is not an issue of  
25 they're just adding more technical information to the --

1     what they had previously disclosed to support that, for  
2     example through images or any other detail.

3                 This is actually coming out with a third  
4     complete alternative.

5                 At the end of the day, your Honor, I think we  
6     addressed this in our rebuttal by doing the same mapping in  
7     our -- in our rebuttal report, but this was a new opinion.  
8     This was not establishing a technical detail to support  
9     existing two alternatives.

10                JUDGE JOHNSON HINES: All right. So,  
11     Mr. Vidwan, I'll stick with you for a minute.

12                You mentioned top-down or bottom-up mapping of  
13     these different layers. And it seems to me that the -- all  
14     of the mappings are bottom-up; right? Because the first  
15     layer is always at the bottom, third layer is at the top?

16                MR. VIDWAN: Correct, your Honor.

17                JUDGE JOHNSON HINES: Okay. And I guess this is  
18     a question I had for Mr. Pensabene.

19                There was a footnote that you pointed out in the  
20     contentions that seemed to suggest either top-down or  
21     bottom-up, but I'm not sure that actually helps, because it  
22     suggests either top-down or bottom-up, but these all seem  
23     to be bottom-up readings, not shifting what layers are  
24     identified in the middle.

25                MR. PENSABENE: Well, I'm not understand -- I

1 don't understand why your Honor doesn't see the footnote as  
2 being relevant. I think it is.

3 And the reason being is if you look at these  
4 layers in the diagrams, it's important to note that these  
5 structures are vertically symmetrical.

6 In other words, if you draw a line through the  
7 middle of it, what you see on top is exactly -- it's a  
8 mirror image of what's on the bottom, okay.

9 So what Samsung did in its contentions -- and  
10 the claims always start with one of the two external layers  
11 and progresses towards the other. So what Samsung did in  
12 its contentions is started with one of the -- it illustrate  
13 a mapping starting with one external layer, continuing to  
14 the other.

15 Rather than include multiple, multiple repeat  
16 diagrams showing the same thing, it included a footnote  
17 saying, hey, because these are symmetrical, you can start  
18 from the other side and have this same mapping.

19 In fact, that's exactly what we showed in our  
20 letter. We showed if you took the second exemplary mapping  
21 from the contentions and flipped it over, in other words,  
22 started from the other side, it's exactly the same as the  
23 third mapping.

24 So what we described in the footnote, starting  
25 from the other side, and doing the -- picking the same

1 layers, applying the same claim construction, applying the  
2 same approach to the claims, it's identical to what was  
3 disclosed in the contentions. It's just starting from the  
4 other side.

5 If you look at the -- your Honor, if you look --  
6 I'm sorry.

7 JUDGE JOHNSON HINES: Excuse me. Excuse me, I  
8 guess I'm not seeing that, because it appears that in the  
9 second mapping, and I don't know the name for this, but  
10 there's some structures that appear to connect layers,  
11 right, that look like -- they look like cylinders but  
12 they're not completely cylindrical.

13 MR. PENSABENE: Right.

14 JUDGE JOHNSON HINES: And they run vertically.  
15 And those are not mirror images because there are three  
16 that run one direction, vertically, and two that run the  
17 other direction, vertically.

18 So I'm not seeing that these structures are  
19 mirror images of one another.

20 MR. PENSABENE: I'm sorry --

21 JUDGE JOHNSON HINES: That's the first point.

22 I think the second point more globally is you  
23 said in your contentions, you illustrated an exemplary  
24 mapping. And for purposes of demonstrating infringement, I  
25 don't understand an exemplary mapping.

1 MR. PENSABENE: Yeah.

2 JUDGE JOHNSON HINES: I do understand  
3 alternative mappings, but, you know, saying, well, here's  
4 an example and we can do anything else, I don't understand  
5 that, kind of where that comes from.

6 Because I do think that the accused infringer is  
7 entitled to know what exactly you are mapping. So I'm a  
8 little troubled by the idea of, you know, here's an example  
9 and we can do something else.

10 MR. PENSABENE: Yes, so I can address that.

11 So putting aside our characterization that these  
12 are exemplary, we can ignore that. We're not relying on  
13 the fact that we call them exemplary for purposes of this  
14 dispute.

15 What we're relying on is that the footnote  
16 explicit -- and I understand your Honor's point about the  
17 connects being a little different.

18 But the point I was trying to make is that the  
19 orientation of the layers, the material, the thickness, the  
20 distance from the outer edge, all of that is exactly  
21 consistent.

22 That's all we're saying in the footnote. All  
23 we're saying in the footnote is that the layers are the  
24 same regardless of which side you start from, and so the  
25 layers of material, which is what we're talking about, and

1 the select -- the identification of which layer meets what  
2 limitation is the same, it's identical, regardless of which  
3 side you start from.

4 JUDGE JOHNSON HINES: So, I mean, as a practical  
5 matter, if that's true, and let's assume for the sake of  
6 argument that it is true, then why do you need three  
7 different mappings? I don't understand that.

8 If they're all the same, and it gets you to the  
9 same place, and there is no difference, then I don't  
10 understand what the third alternative mapping gets you that  
11 the second mapping didn't already get you.

12 MR. PENSABENE: I think the difference is that I  
13 think in later aspects of the analysis where there's a  
14 teardown done, I think the teardown was done in a  
15 particular manner that aligns with the reverse reading  
16 rather than the forward reading.

17 Again, it's not a different analysis, but just  
18 as a practical matter to avoid kind of a nitpicky dispute,  
19 I think that the teardown starts from the opposite side, is  
20 my understanding.

21 JUDGE JOHNSON HINES: So I think at least I have  
22 some confusion here on what opposite side means.

23 I thought opposite side was going to mean where  
24 you've identified the first layer versus where you've  
25 identified the third layer. Is that not so?

1                   MR. PENSABENE: Yeah, the top and the bottom in  
2 the figures.

3                   JUDGE JOHNSON HINES: All right. Because -- and  
4 it seems to me in all of them, whether you're talking  
5 first, second, or third alternative, you have focused on  
6 the same as -- the same layers as the first and third  
7 layers, so you're always starting at one place and ending  
8 in the other, not top-down or bottom-up.

9                   These are all, it seems to me, bottom-up.

10                  MR. PENSABENE: Well, again, for purposes of the  
11 contentions, we select -- we illustrated the point starting  
12 from the bottom and going up, but we included the footnote  
13 to say you can also start from the top and identify the  
14 same layers.

15                  Now, if you look at Oura's letter, the first and  
16 second mapping are different. They're not the same.

17                  For example, if you start at the bottom of the  
18 figure, there's the red box right next to the blue box.

19                  JUDGE JOHNSON HINES: Right.

20                  MR. PENSABENE: If you look at the second  
21 mapping, that's not the case, it's a different first red  
22 layer that's selected.

23                  JUDGE JOHNSON HINES: Right.

24                  MR. PENSABENE: Okay. So those are the two  
25 mappings, and all we said in the footnote is these are the

1 two mappings, you can also start from the other side  
2 picking the same layers. And that's exactly what the third  
3 mapping is.

4 If you flip the second mapping over, the  
5 selection of layers from the second mapping, and just flip  
6 it over to start from the other side, and that's what we  
7 illustrate in our letter, that's exactly what the third  
8 mapping is.

9 All it is, it's the second mapping, the same  
10 exact mapping as the second mapping, just starting from the  
11 other side.

12 JUDGE JOHNSON HINES: So I guess how I don't see  
13 that is you're not starting at the other side, because in  
14 the third alternative mapping, the first insulating layer  
15 is at the same side, so you have start at the same side.

16 MR. PENSABENE: I understand your Honor's point.  
17 Yeah -- no, I apologize, I wasn't understanding your point.

18 It's the selection of the layers and how they're  
19 organized. It's starting from --- you know, it's how far  
20 it is from the exterior layer that we're talking about.

21 So if you look at, for example, the second --  
22 the second alternative mapping from the contentions, and  
23 how that's flipped over, you can see that the red layer is  
24 one, two, three, four, five -- six above the outer layer.  
25 And that's exactly what is in the third alternative

1 mapping. It's six above the external layer.

2 Likewise, the blue is the next one, the next two  
3 layers above that. That's identical. And then you go  
4 three more layers to get the next red one. Again, that's  
5 identical to that.

6 It's just the order of selecting the layers  
7 that's been reversed.

8 JUDGE JOHNSON HINES: I don't know that it's  
9 been reversed as much as it's just been moved up.

10 MR. PENSABENE: It's been reversed.

11 If you look at the second alternative mapping,  
12 the conductive layer, the red layer, is one, two -- like  
13 six from the top, and the vertical flipped version or third  
14 alternative, which are the same, it's six from the bottom.  
15 It's just flipping the mapping.

16 In other words, your Honor, if I could restate  
17 it, we're talking about how far the layers are from the  
18 outer layer, whether you start from top or bottom. It's --  
19 you're counting the layers away from the exterior layers on  
20 both sides.

21 So all the second alternative does is that -- or  
22 third alternative is it flips that counting, which is  
23 exactly what the footnote says. You could start in the  
24 other direction.

25 JUDGE JOHNSON HINES: So it really just brings

1 me back to my question of why. It's why I asked the first  
2 question, was why -- you know, is there something  
3 functional in the claims that this has some kind of impact?  
4 It seems like the answer is no, that is what I heard  
5 anyway.

6                   So I don't understand what this second  
7 alternative mapping, which -- notwithstanding the footnote,  
8 which I don't think supports your position because it  
9 suggests that you can -- you can identify layers top down  
10 or bottom top, but everything here is bottom-up. You've  
11 just changed how you identify them in the middle.

12                   So I don't think that necessarily applies.

13                   So my question for you remains, which is what is  
14 the second alternative mapping -- what is it getting you  
15 that the -- what is this third alternative mapping rather  
16 getting you that -- the first or second mappings that  
17 Mr. Vidwan appears to agree were in the contentions or  
18 fully disclosed?

19                   MR. PENSABENE: I think it's as your Honor said,  
20 I think it relates to how the teardowns were done, and how  
21 the evidence was collected, it was collected counting  
22 according to the second alternative but just starting in  
23 the reverse order.

24                   JUDGE JOHNSON HINES: Mr. Vidwan, maybe you can  
25 help me out here. Mr. Pensabene is saying that the

1 difference between the third alternative mapping and the  
2 second mapping is that they are mirror images of each  
3 other.

4 Do you agree with that?

5 MR. VIDWAN: Yes, they are -- yes, I do.

6 And if I may, your Honor, just to kind of  
7 address -- going to your question to Samsung, what does it  
8 get them, again, if they wanted to disclose three different  
9 alternatives, they could have. And Samsung is saying,  
10 well, this is how the I guess evidence was collected.

11 The difference between when they disclosed the  
12 final contentions to the opening reports was eight days  
13 different. I'm not sure what happened all of a sudden that  
14 there was new evidence that came in between those eight  
15 days that they have to go and come up with a new  
16 alternative.

17 This is not again going and finding evidence  
18 that supports their original positions. This is coming out  
19 with a completely new theory of infringement.

20 JUDGE JOHNSON HINES: So, Mr. Vidwan, how  
21 does -- how does the third alternative mapping, how does it  
22 impact Oura's noninfringement positions?

23 MR. VIDWAN: Your Honor, to be honest, I don't  
24 know the answer to that right off the top, because the team  
25 that's working -- I'm not on that, so I'm not familiar to

1     answer that clearly.

2                   JUDGE JOHNSON HINES:   Okay.

3                   MR. PENSABENE:   Your Honor, if I may?

4                   JUDGE JOHNSON HINES:   In a minute.

5                   Mr. Vidwan, did I understand correctly, has Oura  
6     provided a rebuttal to the infringement allegation  
7     including the third alternative mapping?

8                   MR. VIDWAN:   We have, your Honor.

9                   So what we did in our rebuttal is we mapped it  
10    to again -- let's take Samsung's all three alternatives, we  
11    mapped it back to again -- we addressed that in our  
12    rebuttal report as well as mapped it to Gen 1.  Like if  
13    this is how you're going to go top down, this is how it  
14    applies to Gen 1.  So yes, we have addressed it in our  
15    rebuttal report.

16                  JUDGE JOHNSON HINES:   All right.

17                  And I assume, Mr. Pensabene, you have no  
18    objection to Oura responding to the third alternative  
19    mapping.

20                  MR. PENSABENE:   No, your Honor, we haven't  
21    objected to them, in fact we haven't objected to them  
22    responding to the third mapping as a noninfringement  
23    argument.

24                  JUDGE JOHNSON HINES:   Based on what the parties  
25    have said, I'm not in a position to say that the third

1 alternative mapping should be struck.

2 Frankly, I don't understand it, but you have  
3 said, Mr. Pensabene, there's a reason, and it's consistent  
4 with the mappings that were provided before. I haven't  
5 heard anything on how it is driven by a claim construction  
6 issue or dispute the parties are having, and it appears  
7 from what Mr. Vidwan said that Oura has had the opportunity  
8 to respond, and Mr. Pensabene has said there will be no  
9 objection to Oura responding with respect to the third  
10 alternative mapping.

11 So in light of that, I'm not in a position to  
12 say and I will not say that the third alternative mapping  
13 would be struck.

14 Is there anything else to discuss on that?

15 MR. VIDWAN: Nothing from Oura, your Honor.

16 MR. PENSABENE: Nothing from Samsung.

17 JUDGE JOHNSON HINES: Mr. Vidwan, I didn't hear  
18 you. I'm sorry.

19 MR. VIDWAN: Nothing from Oura.

20 JUDGE JOHNSON HINES: Mr. Pensabene?

21 MR. PENSABENE: Nothing from Samsung, your  
22 Honor. Thank you.

23 JUDGE JOHNSON HINES: All right.

24 Is there anything else we should talk about  
25 today?

1 MR. VIDWAN: Nothing from Oura.

2 JUDGE JOHNSON HINES: Mr. Vidwan.

3 MR. VIDWAN: Nothing from Oura.

4 JUDGE JOHNSON HINES: Mr. Pensabene?

5 MR. PENSABENE: Nothing from Samsung, your  
6 Honor. Thank you.

7 JUDGE JOHNSON HINES: All right. Thank you for  
8 your time. We're adjourned.

9 (Whereupon, at 11:56 a.m., the case management  
10 conference was concluded.)

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## 1 CERTIFICATE OF REPORTER

2 TITLE: Certain Wearable Devices  
INVESTIGATION NO: 337-TA-1478  
3 HEARING DATE: 07-02-26  
LOCATION: Washington, DC - Remote  
4 NATURE OF HEARING: Case Management Conference

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